

ARBITRAL TRIBUNAL
SOLE ARBITRATOR: MR. JUSTICE (RETD.) N. K. VARADACHARI
SEAT OF ARBITRATION: NEW DELHI
ARBITRATION CASE NO. ARB/114/2026

WITNESS STATEMENT — MS. NEHA KOHLI (VICE PRESIDENT, CONTRACTS)

I, the deponent named above, presently associated with Meridian Infra Projects Limited, state on solemn affirmation as follows:

Do hereby solemnly affirm and state as follows:

1. I am the Vice President (Contracts) of the Claimant and have personal knowledge of the execution and performance of the Contract, having been associated with this project since the execution of the EPC Contract on 20.05.2024.
2. I state that the advance payment of Rs. 3,72,00,000 was released to the Respondent on 03.06.2025 and that Performance Bank Guarantee No. SBI/BG/2024/2217 was furnished by the Respondent on 18.06.2025, both in accordance with the Contract.
3. I state that the first two substations were completed and energised, and RA Bills 1 to 4 were certified and paid, without any dispute raised by the Respondent at that stage.
4. I state that the Respondent was afforded full and timely site access for the third substation by 05.03.2025, contrary to the Respondent's contention, and that no written objection to the adequacy of that access was raised by the Respondent at the time of handover or for several weeks thereafter.
5. I state that RA Bill No. 7 was certified by the Engineer-in-Charge at Rs. 89,40,000, as recorded in the certification register maintained in the ordinary course of business and reproduced in the RA Bills Bundle (Exhibit C-3). I am not aware of, and have not seen, any document supporting the Respondent's figure of Rs. 92,40,000.
6. I state that the Claimant never issued any written or telephonic instruction for additional cable trenching works, and that no purchase order or variation order was raised for any such works under Clause 13 of the Contract.
7. I state that the Claimant's total claim of Rs. 4,52,00,000 comprises unpaid certified work and delay damages computed strictly in accordance with Clause 22 of the Contract, as set out in the Statement of Claim.
8. I state that the contents of this witness statement are based on my personal knowledge and on the Claimant's records maintained in the ordinary course of business, to which I have access in my capacity as Vice President (Contracts).

VERIFICATION

The contents of this witness statement are true to my personal knowledge.

Verified at New Delhi on this the 15th day of March, 2026.

DEPONENT